Responsible Administrator: VP Admin/Finance
Responsible Office: University Housing
Effective Date: 08/04/2025
Approved by: President
Date of Revision: 08/04/2025

Reasonable Accommodations in University Housing Policy

Policy Statement

The University Housing Office (hereinafter "University Housing") and Southeastern Louisiana University (hereinafter "University") are committed to providing equal access and opportunity to all persons, without regard to disability, to participate in all programs, activities, and services provided by University Housing. University Housing is committed to complying with all provisions of 42 U.S.C. 3601 – 3619 (cited as the Fair Housing Act), the Americans with Disabilities Act of 1990, the Americans with Disabilities Amendments Act of 2008, Section 504 of the Rehabilitation Act of 1973, and the U.S. Department of Housing and Urban Development's implementing regulations at 24 C.F.R. part 8, providing that no person in the United States shall, on the grounds of disability, be excluded from participation in, be denied the benefits of, or otherwise be subjected to discrimination under any program that receives federal financial assistance.

University Housing acknowledges that it is unlawful to intimidate, threaten, coerce, or retaliate against any person because that person has made a complaint, testified, assisted, or participated in any manner in a proceeding under Section 504 of the Rehabilitation Act of 1973.

University Housing is committed to seeking only the minimum information needed to determine if a requested accommodation may be granted, and does not discriminate on the basis of race, color, religion, national origin, disability, sex, or familial status. All requests are considered on a case-by-case basis. Information and documentation submitted will be considered confidential and will not be released to those without an educational need-to-know.

University Housing is committed to grant accommodations for disability-related needs whenever possible, and to engage in an interactive process with students to include one on one communication via email, phone, and/or in person meetings. Should the requested disability-related request fundamentally alter the nature of University Housing's program, or impose an undue financial and administrative burden on University Housing, after considering all available resources and alternatives, the request may be denied.

University Housing reserves the right to amend this policy and its appending documents at any time as circumstances require.

Purpose of Policy

In accordance with 42 U.S.C. 3601 – 3619 (cited as the Fair Housing Act), the Americans with Disabilities Act of 1990, the Americans with Disabilities Amendments Act of 2008, Section 504 of the Rehabilitation Act of 1973, and other applicable laws and regulations, this policy will state the procedures by which a student may receive a reasonable accommodation to University policy in their on-campus residence in order to provide the student with an equal opportunity to use and enjoy the residence.

Applicability

This policy applies to all students residing on the campus of Southeastern Louisiana University, including students who have applied for on campus residency, and outlines procedures for all reasonable accommodations in a University Housing space, including assistance animals.

Policy Notification Process

This policy will be made available on the University's public website located at southeastern.edu/resources/policies, as well as a notice posted conspicuously for access by the public at the University Housing Office in Pride Hall to ensure accessibility by all interested persons.

Definitions

ADA Coordinator: Southeastern Louisiana University's representative responsible for coordinating ADA compliance efforts.

Applicant: The student requesting a reasonable accommodation.

Assistance Animal: There are two kinds of assistance animals, service animals, and other trained or untrained animals that do work, perform tasks, provide assistance, and/or provide therapeutic emotional support for individuals with disabilities, often referred to as support animals.

Assistance Animal Accommodation: An accommodation for a service or support animal.

Care Provider: A healthcare professional such as a physician, optometrist, psychiatrist, psychologist, physician's assistant, nurse practitioner, or nurse.

Direct Threat: A significant risk of substantial harm to the health and/or safety of an individual with a disability or others that cannot be eliminated or reduced by an accommodation.

Disability: With respect to an individual, a physical or mental impairment that substantially limits one or more major life activities of such an individual, a record of such an impairment, or being regarded as having such an impairment as defined by 42 U.S.C. 12102. Impairments with an actual or expected duration of six (6) months or less are considered temporary and do not qualify as a disability. Disability is synonymous with handicap as defined by the Fair Housing Act.

Effective Communication: Communication with persons with a disability that is as effective as communication with others.

Fundamental Alteration: A modification that alters the essential nature of a provider's operations.

General Accommodation: Any accommodation that is not related to an assistance animal.

Handler: The individual providing care and control over the assistance animal, and to whom the animal is benefitting.

Household Animal: A dog, cat, bird, rabbit, hamster, gerbil, other rodent, fish, turtle, or other small, domesticated animal traditionally kept in the home for pleasure rather than for commercial purposes.

Interactive Process: Dialogue between applicants and University Housing used to facilitate reasonable accommodations by designating specific professional staff to engage one on one with applicants via email, by phone, and/or in person.

Major Life Activity: Those activities that are of central importance to daily life, such as seeing, hearing, walking, breathing, performing manual tasks, caring for one's self, learning, and speaking; includes, but is not limited to, caring

for oneself, performing manual tasks, seeing, hearing, eating, sleeping, walking, standing, lifting, bending, speaking, breathing, learning, reading, concentrating, thinking, communicating, and working; also includes the operation of major bodily functions, such as functions of the immune system, normal cell growth, digestive, bowel, bladder, neurological, brain, respiratory, circulatory, endocrine, and reproductive functions.

Nexus: An identifiable relationship between the requested accommodation and the individual's disability.

Persons Not Protected: Juvenile offenders and sex offenders, persons who are currently engaging in the illegal use of controlled substances, individuals with a disability whose tenancy would constitute a "direct threat" to the health or safety of other individuals or result in substantial physical damage to the property of others unless the threat can be eliminated or significantly reduced by reasonable accommodation.

Pet: An animal kept for ordinary use and companionship.

Reasonable Accommodation: A change, exception, or adjustment to a rule, policy, practice, or service that may be necessary for a person with a disability to have an equal opportunity to use and enjoy a dwelling, including public and common use spaces.

Reasonable Accommodation Application Review Committee: A committee of University professional staff members tasked with the review of reasonable accommodation applications with representation from University Housing, the Office of Student Accessibility Services, and the University Counseling Center; also referred to as "Committee".

Service Animal: A dog that is individually trained to do work or perform tasks for the benefit of an individual with a disability, including physical, sensory, psychiatric, intellectual, or other mental disability. Other species of animals, whether wild or domestic, trained or untrained, are not service animals. The work or tasks performed by a service animal must be directly related to the individual's disability.

Substantially Limited: Occurs when an impairment prevents an individual from performing one or more major life activities as compared to most people in the general population when taking into consideration factors such as the nature, severity, duration, and long-term impact of the condition. Such consideration must be regardless of any mitigating measures such as modifications, auxiliary aids or medications used to lessen the effects of the condition (except for use of ordinary eyeglasses or contact lenses).

Support Animal: An assistance animal, trained or untrained, to do work, perform tasks, provide assistance, and/or provide therapeutic emotional support for an individual with a disability. Synonyms include emotional support animal, comfort animal, companion animal, and therapy animal.

Temporary Alternative Handler: An individual identified by the handler to University Housing who can provide care for and control over a support or service animal when the handler is unable to do so. Temporary Alternative Handlers must be reachable by telephone, be within three (3) hours travel time to the University, and may not provide care for an animal in their on-campus residence, if applicable.

Undue Hardship: An accommodation that would be unduly costly, extensive, substantial, or disruptive, in light of factors such as the size of the University, the resources available, and the nature of the University's business operations.

Unique Animal: Any animal that is not commonly kept in the home for pleasure, such as reptiles (other than turtles), barnyard animals, monkeys, kangaroos, and any non-domesticated animal.

Request for a Reasonable Accommodation Process Overview

Self-Identification

1. It is the student's responsibility to self-identify with University Housing by requesting an accommodation.
    a. The student is responsible for re-applying for general accommodations in University Housing for each new contract period. Students approved for an assistance animal are required to resubmit updated veterinary records once per calendar year or more often as needed.
    b. Students who plan to apply for a reasonable accommodation are asked to do so at least thirty (30) days prior to checking into their on-campus residence, however, students may apply for an accommodation at any time.
2. Requests for accommodation may be submitted:
    a. online via the University Housing Reasonable Accommodation Request Form;
    b. via email to universityhousing@southeastern.edu;
    c. verbally;
    d. postal mail;
    e. hand-delivery.
3. If an individual needs assistance with completing any step in this process, the University will offer such assistance.
4. Following submission, the individual requesting the accommodation must timely and cooperatively participate in the interactive process, as defined above.

Reliable Information/Documentation for Reasonable Accommodations

Students with readily apparent disabilities are not required to submit reliable information/documentation. However, because most accommodation requests are submitted through an online process, University Housing is typically unable to observe whether a disability is visibly apparent. Therefore, reliable information/documentation is generally required to support the request. Documentation should:

1. Verify that the student meets the Fair Housing Act's definition of disabled (has a physical or mental impairment that substantially limits one or more major life activities;
2. Describe the needed accommodation;
3. Show the relationship between the student's disability and the need for the requested accommodation.

To assist applicants and their care providers with the application process, a template is available in the Housing Portal for use by the applicant to document their care provider's verification.

Review of a Reasonable Accommodation Request

1. Once submitted and received, the Reasonable Accommodations Application Review Committee will document the request in the appropriate online submission form, if not already submitted there by the applicant, for review and tracking purposes.
2. The chairperson will complete an initial review of the application to ensure that all supporting documentation is accessible and complete within three (3) business days.
    a. If incomplete, the chairperson will notify the applicant of the missing information from their application.
    b. If complete, the chairperson will notify the committee members of the new application.
3. Generally, the Committee will provide feedback to the committee chairperson in ten (10) business days from the date they are notified by the chairperson.
4. Throughout the review process, the chairperson will engage in the interactive process with the applicant, committee members, and other University officials as needed.
    a. If applicable, the chairperson will contact the roommate(s) and/or suitemate(s) of the applicant to determine if there is any conflict with the requested accommodation.
5. The chairperson will notify the applicant in writing of the final determination of the committee, including information regarding the internal grievance procedures, via the applicant's University email address.
    a. Accommodations that are recommended by the applicants' care provider(s) may differ from the accommodations ultimately approved.

b. If needed, the chairperson will discuss any alternate, equally effective accommodation options with the applicant.

6. The chairperson will inform staff in the educational need-to-know of the approved accommodation.

Waitlist Process

In the event that an approved accommodation requires a certain type of room that is not currently available, staff will attempt to reach an agreement with the applicants on an alternative accommodation that would effectively meet their disability-related needs without fundamentally altering University Housing operations and/or posing an undue financial and administrative burden. If an alternative accommodation cannot be provided, or the student wishes to wait for an available space, the student will be placed on the appropriate waiting list. When space becomes available, the student will be notified via their University email address, and will have three (3) business days to accept or decline the space by replying via email.

Appeals and Grievances

If any student is dissatisfied with the outcome of their accommodation request, or feels that a staff member has failed to provide accommodations determined to be appropriate, students may file a grievance with the EEO/ADA Compliance Office. The procedure is as follows:

Southeastern Louisiana University has adopted an internal grievance procedure providing for prompt and equitable resolution of complaints alleging any action prohibited by the U.S. Department of Justice regulations implementing Title II of the Americans with Disabilities Act. Title II states, in part, that "no otherwise qualified disabled individual shall, solely by reason of such disability, be excluded from the participation in, be denied the benefits of, or be subjected to discrimination" in programs or activities sponsored by a public entity.

Complaints should be addressed to the EEO/ADA Compliance Officer, who has been designated to coordinate ADA compliance efforts.

1. A complaint should be filed in writing or verbally, contain the name and address of the person filing it, and briefly describe the alleged violation of the regulations.
2. A complaint should be filed within ten (10) business days after the complainant becomes aware of the alleged violation.
3. An investigation, as may be appropriate, shall follow a filing of a complaint. The ADA Compliance Officer or their designee shall conduct the investigation. These rules contemplate informal but thorough investigations, affording all interested persons and their representatives, if any, an opportunity to submit evidence relevant to a complaint.
4. A written determination as to the validity of the complaint and a description of the resolution, if any, shall be issued by the ADA Compliance Officer and a copy forwarded to the complainant no later than ten (10) business days after its filing.
5. The ADA Compliance Officer shall maintain the files and records of the University relating to the complaints filed.
6. The complainant can request a reconsideration of the case in instances where he/she is dissatisfied with the resolution. The request for reconsideration should be made within ten (10) business days to the President. The President and their designee will render a decision within ten (10) business days of receipt of the complaint.
7. The right of a person to a prompt and equitable resolution of the complaint filed hereunder shall not be impaired by the person's pursuit of other remedies such as filing of an ADA complaint with the responsible federal department or agency. Use of this grievance procedure is not a prerequisite to the pursuit of other remedies.
8. These rules shall be construed to protect the substantive rights of interested persons to meet appropriate due process standards and to assure that the University complies with the ADA and implementing regulations.

Reasonable Accommodation Request Options

Requests for Auxiliary Aids

University Housing will provide auxiliary aids where necessary to give students with disabilities equal opportunity to receive and enjoy the benefits of the on-campus residence. Requests for auxiliary aids may include the following: visual alarms; tactile signs; visual doorbell; reader; interpreter; applications, leases, and other information/communications in large print or Braille; recordings of such information; and a television, in a public area, that provides closed-captioning service.

The student requesting an auxiliary aid due to a disability is obligated to provide notice of the nature of the disabling condition to the University, and to assist in identifying appropriate and effective accommodations. Personal attendants and individually prescribed devices are the responsibility of the student who has a disability and not of the institution.

The University, at its own expense and with written student authorization, may obtain an independent medical opinion regarding requests for auxiliary aids, which may include recommendations for alternative accommodations, aids, or services. If the student requesting the auxiliary aid does not provide written authorization, it may result in the denial of the request.

Requests for Accessible, Semi-Private, and Private Rooms

Accessible units, semi-private, and private rooms are assigned to persons needing the features of these units on a priority basis based on current availability of the unit type. Accessible rooms will be made available to applicants in the following order by date of submission of the request:

1. Current Residents: Individuals with a disability currently residing in a non-accessible unit in the same or similar room style, who require the features of an accessible room.
2. Applicants with Disabilities: If no current resident requires the special features of the accessible room, the next qualified applicant on the waiting list will be offered the accessible room.

Requests for Assistance Animal Accommodation

Service Animal

Residents who wish to reside on campus with a service dog do not need approval from the University as long as it is readily apparent that the service dog is trained to do work or perform tasks for the benefit of an individual with a disability. Residents are encouraged to complete the Service Animal Notification Form via the Housing Portal at least thirty (30) days prior to their arrival on campus so that we can best prepare for the success of the handler, animal, and adjacent community members. The care for and behavior of service dogs may not create unreasonable disruptions for residents, employees, and other University community members.

University Housing will make reasonable efforts to notify the members of the on-campus community of the presence of a service animal that may impact them. In the event that the presence of a service animal creates a conflict for a student with a phobia, religious observance, faith-based restriction, or medical condition that is impacted by the presence of a service animal, the student should contact University Housing so that the department can work to meet the needs of all parties involved to the best of its ability.

Support Animal

Residents who wish to reside on campus with a support animal must submit a request for a reasonable accommodation. Residents must receive approval for a reasonable accommodation from University Housing prior to bringing their support animal into their on-campus residence. When requesting a reasonable accommodation for a support animal, applicants should prepare all supporting documentation prior to submitting their request. University Housing has provided a fully online application process for submitting a support animal accommodation request.

The Department of Justice approved Assistance Animal Policies and Agreements permit a university seven factors in determining the reasonableness of a request for a support animal:

1. Whether the animal's size is too large for the available space.
2. Whether the presence of the animal evicts another student out of that space.
3. Whether the animal could violate the right of peace and enjoyment of the residential community.
4. Whether the animal is housebroken, or is unable to reasonably live with others.
5. Whether the vaccination record is up to date.
6. Whether the animal poses a direct threat to others, including a history of aggressive behavior.
7. Whether the animal has caused excessive damage beyond what is considered reasonable to the university's property.

A request for a support animal may be denied and deemed unreasonable if:

- The presence of the animal imposes an undue financial and administrative burden.
- The animal poses a direct threat to the health or safety of others, or would cause or has caused substantial property damage to the property of others, including University property.
- The presence of the animal fundamentally alters the nature of University operation.
- The animal poses or has posed in the past a direct threat to the student or others (e.g., aggressive behavior towards or injuring the student or others).
- The animal causes or has caused excessive damage to the residence beyond reasonable wear and tear.
- The animal poses health risks from infectious diseases or safety concerns regarding containment that cannot be sufficiently mitigated for inclusion in the communal living setting.

Documentation from Veterinarian

Applicants are required to submit verification from their animal's veterinarian documenting that the animal is in good health, and up to date on all necessary vaccinations in order to assure that the applicant's support animal does not pose a health risk to the residential community.

Updating Veterinarian Records

After receiving approval for a support animal, handler's will be required to submit updated veterinary records at least once per calendar year following the approval of the animal. Updated records may be emailed to University Housing at universityhousing@southeastern.edu or hand delivered to the University Housing Office in Pride Hall.

Purchasing Documentation Online

The Federal Trade Commission has been asked to investigate websites that claim to provide documentation from a healthcare provider in support of a request for support and service animals. These websites offer to sell documentation that is not reliable for the purpose of determining whether someone has a disability, or disability related need, for an accommodation due to the operators and their consultants lacking personal knowledge that is necessary for making such determinations. These documents often include identification cards, certificates, letters, etc. Applicants are advised to use caution and consult with the Committee before purchasing documentation from the internet.

Roommate Agreement and Roommate Conflict

University Housing will disclose information regarding the request for and/or presence of assistance animals to those individuals who may be impacted by its presence, including but not limited to University staff, agents of the University, potential and/or actual roommates, and neighbors. The roommate(s) and/or suitemate(s) of an applicant must agree to allow a support animal to reside with them. A Support Animal Roommate Agreement can be facilitated by University Housing staff upon request of the applicant and/or roommate(s)/suitemate(s) to aid applicants in navigating the agreement process.

If there is a conflict with the assistance animal, the applicant and their roommate(s) with a conflict should contact University Housing. University Housing will work to meet the needs of all parties involved to the best of its ability while considering the needs and/or accommodations of everyone. University Housing may recommend that either the

applicant or the roommate(s)/suitemate(s) be reassigned to a more suitable on-campus residence. In the event that an agreement cannot be reached, the conflict may be referred to other University officials for review and/or recommendation.

Behavioral Expectations Regarding Assistance Animals

Students, faculty, and staff at Southeastern Louisiana University are expected to respect the rights and needs of individuals with assistance animals. This includes following all applicable laws and university policies that support accessibility and inclusion. Violations of behavioral expectations may result in a formal complaint with the Office of Student Advocacy and Accountability. Specific expectations include, but are not limited to, the following:

Expectations of the Animal

1. Assistance animals must be non-aggressive, and remain under the control of the handler at all times.
2. Assistance animals must be housebroken by relieving itself outside or in a litter box. Rodents and other small household animals will be considered housebroken if they relieve themselves within their enclosure, provided the enclosure has appropriate bedding or material lining the bottom to absorb waste and maintain cleanliness.
3. Assistance animals may not create a disturbance by being excessively loud, malodorous, or by damaging property.
4. Assistance animals must wear an identification tag with the name of the handler, contact information, and an updated rabies tag (if applicable).
5. Assistance animals must sleep in the handler's residence and, if applicable, in their handler's individual bedroom.

Expectations of the Handler

1. Handlers must clean up all solid animal waste, indoors and outdoors, in a timely, effective fashion. If a handler has physical limitations that prevent them from cleaning up animal waste, it is the responsibility of the handler to arrange for another person to do so on their behalf. It is also recommended that such arrangements be discussed with University Housing. If an animal has an accident indoors, handlers are responsible for cleaning solid and liquid animal waste.
2. Litter must be disposed of at least once per week with solid waste being separated at least once per day to avoid odors.
3. Handlers must comply with all state and local laws and ordinances pertaining to animal ownership and care. University personnel are not responsible for providing care for an assistance animal in absence of the handler or the temporary alternative handler, including removing the animal during an emergency evacuation. The University shall not be held responsible for the loss of, injury to, or death of an assistance animal.
4. Handlers may have only one assistance animal in their on-campus residence.
5. Handlers may not launder any of their animals' materials, bedding, clothes, etc. in any University owned facility.
6. Assistance animals must not be left alone for extended periods of time in the handler's on-campus residence, and may not be left alone overnight. In the event that an assistance animal is left alone for an extended period of time, or is in need of attention, University Housing will attempt to reach the handler by phone. If unable to reach the handler in a reasonable time, the temporary alternative handler will be contacted. If both the handler and temporary handler are unreachable, University Housing will contact the Tangipahoa Parish Animal Control Center to assume care of the animal at the owner's expense.
7. Assistance animals must not be left in the care of another resident at the handler's residence or at any other on-campus residence.
8. When the handler is away from the room without their assistance animal, the animal must be contained in a crate, kennel, cage, etc. A liner should be placed under the containment to prevent any damage to the floor underneath. Staff must be able to access residences where assistance animals live while the owner is away without interference from the animal. University Housing reserves the right to inspect the containment being used by the handler.
9. When outside the handler's residence, the assistance animal must be under the control of the handler, such as on a leash or in a carrier, unless the use of such an implement impacts the ability of a service animal to do work.

When requested by a roommate or suitemate, a leash or other implement should also be used when the animal is inside the residence, but outside the handler's bedroom.
10. Service animal handlers are prohibited from bringing their animal into certain areas in order to ensure health and safety, including but not limited to, mechanical rooms, custodial closets, and boiler rooms.
11. Support animal handlers are prohibited from bringing their animal into any public common spaces within an on-campus residence, including but not limited to community/shared bathrooms, lounges, computer labs, and study rooms.
12. Handlers are responsible for providing all necessary provisions for an assistance animal in the event of an evacuation to the on-campus shelter.
13. Handlers must notify University Housing in writing if their support animal is no longer staying in the residence in order to maintain an accurate record of approved animals on campus.
14. Handers must re-apply for a support animal accommodation if they obtain a new support animal after receiving an initial approval.
15. Handlers may not house their support animal on campus until the handler receives written approval from University Housing for a reasonable accommodation.

Expectations of the Community

1. Individuals should avoid petting an assistance animal without the handler's consent, as this can distract the animal from carrying out its duties.
2. Individuals should not feed assistance animals.
3. Individuals should not deliberately startle or provoke assistance animals.
4. Individuals should never separate or attempt to separate a handler from their assistance animal.
5. Visitors are not permitted to bring support animals into University Housing facilities.

Room Inspection and Pest Control

University Housing reserves the right to conduct announced or unannounced room inspections of any on-campus residence for maintenance, inventory, health, and safety. Rooms will be checked at least two (2) times per semester, and more as warranted. University Housing will send emails announcing regularly scheduled health and safety inspections at least 24 hours in advance. Room inspection includes checking for fleas, ticks, or other pests as a standard for routine inspections. If pests are detected through the inspection, the residence will be treated using approved fumigation methods by a University approved pest control service. In the event that the presence of a pest can be connected to the presence of an assistance animal, the handler will be billed for the expense of any pest control treatment beyond the standard pest management service provided to all on-campus residences.

Removal of an Assistance Animal

University Housing will base determinations regarding removal of the assistance animal upon consideration of the behavior of the particular animal at issue, and not on speculation or fear about the harm or damages the animal may cause. Any removal of the animal may be appealed. University Housing may require the individual to remove their assistance animal if:

- The animal poses a direct threat to the health or safety of others or causes substantial property damage to the property of others;
- The animal's presence results in a fundamental alteration of a University program;
- The handler and/or animal do not adhere to the responsibilities set forth above;
- The animal or its presence creates an unmanageable disturbance or interference with the University community, and/or is disruptive to the living environment for others (e.g., barking or other loud noises, significant odor from cages or litter boxes, etc.), and/or causes damage to University facilities beyond what is considered reasonable.

If such removal is necessary, the owner will be given at least twenty-four (24) hours of notice to remove the animal voluntarily, after which time University Housing may contact the Tangipahoa Parish Animal Control Center to have the

animal removed at the expense of the handler. Should the animal be removed from an on-campus residence for any reason, the handler is expected to fulfill the housing obligations for the remainder of the housing contract.

Following removal of the assistance animal, the student has the right to engage with University Housing in the interactive process to determine whether an alternative reasonable accommodation can be provided.

Requests for Additional Information

For additional information concerning reasonable accommodations, or other University Housing policies and procedures, please contact:

Southeastern Louisiana University
University Housing
Pride Hall
SLU 10704
Hammond, Louisiana 70402

Phone: 985-549-2118
Fax: 985-549-5118
Email: universityhousing@southeastern.edu
Website: southeastern.edu/housing

[End of Policy]